

DEVELOPER-CONTRACTOR AGREEMENT

THIS CONTRACT is made and entered into as of this ____ day of _____, 2025, by and between:

[Developer's Name], having its registered office at **[Developer's Address]**, hereinafter referred to as the "Developer" (Party of the First Part), and

[Contractor's Name], having its registered office at **[Contractor's Address]**, hereinafter referred to as the "Contractor" (Party of the Second Part).

The Developer and the Contractor are collectively referred to as the "Parties" and individually as a "Party".

ARTICLE I: COMMENCEMENT AND TERM

1. This Agreement shall take effect from the date of signing and shall remain in force for a period of ____ months unless terminated earlier in accordance with the provisions of this Agreement.
2. The Contractor shall commence the work within ____ days from the issuance of the Notice to Proceed.

ARTICLE II: SCOPE OF WORK

1. The Contractor agrees to execute and complete construction work for the project located at **[Project Address]**.
2. The scope of work shall include but is not limited to:
 - Site preparation and foundation work
 - Structural framework, masonry, and roofing
 - Electrical, plumbing, and HVAC installations
 - Finishing work, including painting and flooring
 - Any other work mutually agreed upon in writing
3. All work shall be carried out in accordance with the approved drawings, specifications, and relevant building codes.

ARTICLE III: CONTRACT VALUE AND PAYMENT TERMS

1. **Contract Value:** The total contract value shall be INR _____ (Rupees _____ Only).

2. Payment Schedule:

- Mobilization Advance: ___% of the contract value, payable within __ days of signing this Agreement, against a bank guarantee of equivalent value.
 - Progress Payments: Payments shall be made on a milestone basis, as follows:
 - [Milestone 1] - ___% upon completion of [Task]
 - [Milestone 2] - ___% upon completion of [Task]
 - [Milestone 3] - ___% upon completion of [Task]
 - Final Payment - Balance amount upon successful completion and handover.
 - 3. The Contractor shall submit invoices along with relevant documentation for each milestone. Payments shall be processed within __ days of invoice submission.
 - 4. Retention money of ___% shall be withheld from each payment and released after the defect liability period of __ months.
-

ARTICLE IV: IMPLEMENTATION PERIOD

1. The Contractor shall complete all work within __ months from the start date.
 2. Any delay beyond the stipulated completion period shall attract a penalty of ___% of the contract value per week, up to a maximum of ___%.
 3. In case of justified delays due to unforeseen circumstances, an extension of time may be granted upon mutual agreement.
-

ARTICLE V: RESPONSIBILITIES OF PARTIES

1. Developer's Responsibilities:

- Provide access to the construction site.
- Ensure timely approvals and clearances.
- Make timely payments as per the agreed schedule.

2. Contractor's Responsibilities:

- Execute the work with due diligence and professionalism.
 - Comply with all relevant safety and labor laws.
 - Ensure quality control as per industry standards.
 - Rectify defects arising within the defect liability period at no additional cost.
-

ARTICLE VI: FORCE MAJEURE

Neither party shall be liable for delays or non-performance due to unforeseen events beyond their reasonable control, including but not limited to natural disasters, strikes, war, or government regulations.

ARTICLE VII: DISPUTE RESOLUTION

1. Any disputes arising out of this Agreement shall first be resolved through mutual negotiation.
 2. If unresolved, disputes shall be referred to arbitration under the applicable Arbitration Act, with proceedings conducted in [City].
 3. If arbitration fails, disputes shall be settled in the courts of [Jurisdiction].
-

ARTICLE VIII: AMENDMENTS AND TERMINATION

1. No modifications to this Agreement shall be valid unless made in writing and signed by both parties.
 2. Either party may terminate this Agreement with ___ days' written notice in case of material breach by the other party.
 3. Upon termination, all outstanding dues shall be settled as per the agreed terms.
-

ARTICLE IX: GENERAL PROVISIONS

1. **Governing Law:** This Agreement shall be governed by the laws of [Country/State].
 2. **Notices:** All official communications shall be in writing and sent to the addresses mentioned above.
 3. **Severability:** If any provision is found to be invalid, the remaining provisions shall continue to be enforceable.
-

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement on the date first written above.

Developer:

Authorized Signatory

[Name]

[Designation]

Contractor:

Authorized Signatory

[Name]

[Designation]

Witnesses:

1.

2.
